

September 14, 2026
Dept. 9
Probate Tentative Rulings

2.	26PR0022	ESTATE OF JEFFREY CURTIS WILLIAMS
PETITION HEARING		

On July 6, 2026, Executor, Wells Fargo Bank, N.A. (“Executor” or “Petitioner”) filed a Petition for Order Confirming Ownership of Assets and Granting Possession of Assets. Proof of service of notice of hearing was filed on July 21, 2026. No opposition has been filed.

Petitioner seeks the following findings and orders:

1. Notice of the Petition has been given as required by law or otherwise dispensed with;
2. The allegations contained in the Petition are true;
3. JCW Development, LLC is an asset of the Jeffrey C. Williams 2011 Revocable Trust Dated October 21, 2011, as amended, and subject to the possession and control of Wells Fargo Bank, N.A. as Trustee of the Jeffrey C. Williams 2011 Revocable Trust dated October 21, 2011, as amended;
4. Pony Express Estates, LLC is an asset of the Jeffrey C. Williams 2011 Revocable Trust Dated October 21, 2011, as amended, and subject to the possession and control of Wells Fargo Bank, N.A. as Trustee of the Jeffrey C. Williams 2011 Revocable Trust dated October 21, 2011, as amended.; and
5. Placerville Land, LLC is an asset of the Jeffrey C. Williams 2011 Revocable Trust Dated October 21, 2011, as amended, and subject to the possession and control of Wells Fargo Bank, N.A. as Trustee of the Jeffrey C. Williams 2011 Revocable Trust dated October 21, 2011, as amended.

Decedent, Jeffrey C. Williams (“Decedent”), established the Jeffrey C. Williams 2011 Revocable Trust (the “Trust”) on October 21, 2011. Decedent Amended the Trust pursuant to the First Amendment to Jeffrey C. Williams 2011 Revocable Trust Dated October 21, 2011, on March 21, 2021. Decedent amended the Trust pursuant to the Second Amendment to Jeffrey C. Williams 2011 Revocable Trust Dated October 21, 2011, on February 8, 2019.

Prior to Decedent’s death, he purchased the following real properties: 5195 Deer Valley Road, Rescue, California, El Dorado County (“Deer Valley”), 1751 Lotus Road, Placerville, California, El Dorado County (“1751 Lotus Road”), 1601 Lotus Road, Placerville, California, El Dorado County (“1601 Lotus Road”), and 1631 Lotus Road, Placerville, California, El Dorado County (“1631 Lotus Road”) (collectively the “Subject Properties”).

On July 30, 2024, Decedent formed and registered JCW Development, LLC. On September 30, 2024, Decedent formed and registered Pony Express Estates, LLC and Placerville Land, LLC. At the time of Decedent’s death, title to the LLCs was in his name individually and not the Trust.

On December 22, 2024, Decedent made the following transfers: 1) Deer Valley was transferred to Pony Express, LLC by Grant Deed; 2) 1601 Lotus Road was transferred to

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Placerville Land, LLC by Grant Deed; 3) 1631 Lotus Road was transferred to Placerville Land, LLC by Grant Deed; and 4) 1751 Lotus Road was transferred to Placerville Land, LLC by Grant Deed.

Petitioner asserts that at the time Decedent purchased the Subject Properties, he intended and did take title to the assets as Trustee of the Trust. Although the membership interests in the LLCs were titled to and in the possession of Decedent individually, there was never any intent at the time of forming or subsequent funding the LLCs to defund the Trust, but rather the LLCs were created to be a form of management of the Subject Properties.

The Declaration of Michael J. Dalton confirms it was neither intended nor appreciated at the time of transferring the Subject Properties to the LLCs had the effect of defunding the Trust. Had this been understood, the membership interest in the LLCs would have instead been issued to Decedent in his capacity as Trustee of the Trust.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief.

Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

- (a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.
- (b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition.

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Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that decedent intended the above-mentioned assets be part of the Trust.

TENTATIVE RULING #2:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.